

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT IN AND FOR
MANATEE COUNTY, FLORIDA**

COLONIAL MANOR HOMEOWNERS
ASSOCIATION, INC., a Florida
Non-for-profit corporation,

CASE NO: 2022 CA 4348

Plaintiff,

v.

COLONIAL MANOR MHC HOLDINGS
LLC, a foreign limited liability company,

Defendant.

**DEFENDANTS' MOTION FOR ENTITLEMENT TO
ATTORNEYS' FEES AND COSTS**

Pursuant to Florida Rule of Civil Procedure 1.525 and Florida Statute Section 723.068, Defendant Colonial Manor MHC Holdings LLC respectfully requests this Court to enter an order awarding its entitlement to reasonable attorneys' fees and costs incurred in this action against Plaintiff Colonial Manor Homeowners Association, Inc., ("Plaintiff") and states as follows:

BACKGROUND FACTS

1. A Complaint [DIN 10] in this action was filed on October 20, 2022. The Complaint sought recovery from Defendant an unreasonable lot fee.
2. Defendant is the prevailing party in this action on claim(s) for alleged violations in connection with the Florida Mobile Home Act ("FMHA") Chapter 723, *Fla. Stat.*
3. On July 20, 2026, the Court entered a Order of Dismissal [DIN 38].
4. The dismissal of the claims makes Defendant the prevailing party under Florida law for purposes of a prevailing party fee award.
5. Defendant is entitled to recover fees on all claims.

6. Section 723.068, *Fla. Stat.* provides “in any proceeding between private parties to enforce provisions of this chapter, the prevailing party is entitled to a reasonable attorney's fee.”

7. An award of attorneys’ fees is mandatory for the prevailing party in Chapter 723 actions pursuant to § 723.068, *Fla. Sta. Vidibor v. Adams*, 509 So.2d 973 (Fla. 5th DCA 1987); *Douglas v. River Grove I Mobile Homeowners’ Assoc.*, 574 So.2d 293 (Fla. 5th DCA 1991).

MEMORANDUM OF FACTS AND LAW

8. Defendant is a “prevailing party” for purposes of Plaintiff’s claims asserted against it pursuant to Chapter 723 *Fla. Stat.* Accordingly, Defendant is entitled to an award of reasonable attorney’s fees and recoverable costs.

9. Under Florida law, every Defendant named in each state law claim is a prevailing party for purposes of recovering statutory attorney fees. A prevailing party in any proceeding to enforce the FMHA is entitled to recover reasonable attorney’s fees. § 723.068 *Fla. Stat.* The award is mandatory, such that if there is a prevailing party, the court must award attorney’s fees. See, e.g., *Vidibor v. Adams*, 509 So.2d 973, 974 (Fla. 5th DCA 1987). The definition of “prevailing party” under the FMHA tracks general Florida law. See, *Douglas v. River Grove “I” Mobile Homeowners Ass’n, Inc.*, 574 So.2d 293 (5th DCA 1991).

10. The plaintiffs in *Douglas* filed a multi-count complaint, where two of the counts expressly alleged violations of provisions of the FMHA. *Douglas*, 574 So.2d at 293. The plaintiffs sought class action certification under Fla.R.Civ.P. 1.222. *Id.* at 294. The trial court granted, in part, the defendants’ motion to dismiss the complaint, holding that the case could not be brought as a class action under Fla.R.Civ.P 1.222. *Id.* The court reasoned, however, the claims might appropriately be brought under a different rule of civil procedure. *Id.* (referring to Fla.R.Civ.P 1.220). The homeowner’s association initially appealed the order but later dismissed

the appeal and the plaintiffs simply refiled their class action under the other rule of civil procedure. *Id.*

11. The defendants in *Douglas* sought recovery of “prevailing party” attorney’s fees pursuant to § 723.068, Fla Stat. The trial court denied the fees motion, however, expressing the view the defendants were not yet the prevailing parties on the merits of the lawsuit, which had already been refiled. *Id.* That ruling was reversed on appeal. The *Douglas* court held that the defendants were successful in obtaining dismissal of the initial suit and, therefore, were “prevailing parties” entitled to mandatory attorney’s fees under § 723.068. *Id.* “That the dismissal was obtained on procedural grounds is immaterial; the fact is the lawsuit was involuntarily dismissed and [the homeowner’s association] waived appellate review of the dismissal order.” *Id.*

12. Under the FMHA, a prevailing party is entitled to reasonable attorney’s fees “in any proceeding between private parties to enforce provisions” of the FMHA. *Fla. Stat.* § 723.068. Any dismissal of a claim under the FMHA triggers the right to a prevailing party attorneys’ fee award. *Douglas v. River Grove “I” Mobile Homeowners Association, Inc.*, 574 So. 2d 293, 294 (Fla. 5th DCA 1991). An award of discretionary fees is appropriate.

WHEREFORE, Defendant Colonial Manor MHC Holdings LLC respectfully requests this Court enter an order finding that Defendant is entitled to recovery reasonable attorneys’ fees and costs in this case filed by Plaintiff Colonial Manor Homeowners Association, Inc., reserve jurisdiction to determine the reasonable amount and for such other relief as this Court deems just and proper.

CERTIFICATION OF SERVICE

I hereby certify that the foregoing has been served upon Victoria w. Powell, Esq., 11098 Choctaw Street, Jupiter, Florida 33458; victoria@wholisticlegalsolutions.com; victoria@wholisticbiz.com via the Florida e-portal on this 14th day of August, 2026.

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